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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN

**MINISTRY OF LAW, JUSTICE, HUMAN RIGHTS AND
PARLIAMENTARY AFFAIRS**

(Law, Justice and Human Rights Division)

Islamabad, the 22nd February, 2005

F. No. 2(1)/2005-Pub.—The following Ordinance promulgated by the President is hereby published for general information:—

ORDINANCE No. II OF 2005

AN

ORDINANCE

*to provide for the establishment of the Defence Housing
Authority Islamabad*

WHEREAS it is expedient to establish Defence Housing Authority Islamabad and to provide for the matters connected therewith or incidental thereto;

(19)

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:—

1. **Short title, extent and commencement.**— (1) This Ordinance may be called the Defence Housing Authority Islamabad Ordinance, 2005.

(2) It extends to the Specified Area.

(3) It shall come into force at once.

2. **Definitions.**—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) “Administrator” means the Chief Executive Officer of the Authority appointed under this Ordinance;

(b) “Authority” means the Defence Housing Authority Islamabad established under this Ordinance;

(c) “Chairman” means the Chairman of the Governing Body;

(d) “CDA” means the Capital Development Authority constituted under the Capital Development Authority Ordinance, 1960 (XXIII of 1960);

(e) “controlled area” means an area notified as such by the Authority;

(f) “Executive Board” means the Executive Board constituted under this Ordinance;

(g) “Governing Body” means the Governing Body constituted under this Ordinance;

(h) “Islamabad Capital Territory (ICT)” means the Federal Capital as determined under the Capital of the Republic (Determination of the Area) Ordinance, 1963 (VI of 1963);

(i) “member” means a member of the Authority and includes its Chairman;

(j) “prescribed” means prescribed by rules or regulations made under this Ordinance;

- (k) "President" means the President of the Executive Board;
- (l) "project" means any project of housing or development of land undertaken or planned by the Authority;
- (m) "Regulations" means regulations made under this Ordinance;
- (n) "Rules" means rules made under this Ordinance;
- (o) "Scheme" means any financial scheme or development scheme undertaken, planned or made by the Authority under this Ordinance;
- (p) "Secretary" means the Secretary of the Authority; and
- (q) "Specified Area" means all land purchased or procured by, or leased to, Army Welfare Housing Scheme (AWHS) in any manner before the commencement of this Ordinance and vested in the Authority and such other land as may from time to time be purchased or procured by, or leased to the Authority in an area in Rawalpindi District as may be notified by the Authority and in Zones of private Housing Schemes earmarked by C.D.A. in Islamabad Capital Territory.

3. **Establishment of the Authority.**—(1) There shall be established an Authority to be known as the Defence Housing Authority, Islamabad for carrying out the purposes of this Ordinance.

(2) The Authority shall be a body corporate, having perpetual succession and common seal, with power to purchase, procure, hold and dispose of property, both movable and immovable, and to enter into contracts, and shall by its name sue and be sued.

(3) The head office of the Authority shall be at Islamabad or Rawalpindi, as the case may be.

4. **Governing Board.**—(1) The general direction and administration of the Authority and its affairs shall vest in the Governing Body, which shall consist of the following members, namely:—

- (1) The Secretary, Ministry of Defence *Chairman*
- (2) Adjutant General Pakistan Army *Vice Chairman*
- (3) Director General Welfare and Rehabilitation *Member*

- (4) Administrator..... *Member*
- (5) Chairman, CDA..... *Member*
- (6) Secretary *Member*

(2) The Federal Government may increase or decrease the number of members of Governing Body and in case of non-official members may prescribe their qualifications and mode of appointment.

5. **Executive Board.**—(1) There shall be an Executive Board which shall exercise all the administrative, executive and financial powers of the Authority and do all such acts and things, which may be exercised or done by the Authority but under the guidance and directions on questions of policy by the Governing Body.

(2) The Executive Board shall comply with the instructions of the Governing Body issued from time to time.

(3) The Executive Board shall consist of Adjutant General Pakistan Army as its President, Director-General Welfare and Rehabilitation, Administrator of the Authority and Secretary of the Authority as members while two residents will be co-opted members.

(4) The co-opted members, to be appointed by the Executive Board, shall be members for a period not exceeding two years at a time and shall not have the right to vote.

(5) The Administrator not below the rank of Brigadier (serving or retired) shall be appointed by the Chief of the Army Staff who shall perform such functions as may be assigned to him by the Governing Body.

6. **Meeting of Governing Body and Executive Board.**—(1) The Governing Body shall meet at least once every year, on such date, time and place as may be fixed by the Chairman, and at such meetings it shall approve the budget and audit report of the Authority laid before it by the Executive Board and review the progress and activities of the Authority as well as to lay down matters of policy for the guidance of the Executive Board and transact such other business as may be laid before it by the Executive Board.

(2) The Executive Board shall meet as may be required, or considered necessary by the Administrator in consultation with the President and at such meetings shall transact such business as may be laid before it by the Administrator.

(3) The meetings of the Governing Body shall be presided over by the Chairman and, in his absence, by the most senior member of the Governing Body.

(4) The meetings of the Executive Board shall be presided over by the President and, in his absence, by the most senior member of the Executive Board.

(5) All meetings of the Governing Body and the Executive Board shall be convened by the Secretary who shall record, maintain and keep the minutes of all such meetings.

7. **Annual report and accounts.**—The Executive Board shall submit to the Governing Body, as soon as may be after the end of every financial year but before the thirty-first day of December next following, a general report on its affairs including accounts, balance sheet and audit report for the financial year.

8. **Powers, duties and functions of Executive Board.**—(1) Subject to other provisions of this Ordinance, the Executive Board may take such measures and exercise such powers as may be necessary for carrying out the purposes of the Ordinance.

(2) Without prejudice to the fundamental rights of the people and to the generality of the foregoing powers, the Executive Board may:—

- (a) Purchase or procure any land in accordance with the Government rules on the subject, and where it pertains to Islamabad Capital Territory shall confine itself to zones 2 and 5 or any other Zone (s) so prescribed by CDA for private Housing Schemes:

Provided that in such Schemes in Islamabad Capital Territory, the Authority shall observe the Rules, Regulations, Byelaws, etc. framed by CDA;

- (b) undertake any works in pursuance of any Scheme or project;
- (c) incur any expenditure;
- (d) procure plant, machinery, equipment, instrument and necessary materials;
- (e) impose, recover, alter, vary or enhance development charges, installments, cost of apartments, housing units of the Scheme, commercial projects and transfer fees and other charges in respect of any property, plot or project within the area of the Authority;

- (f) enter into contracts or any type of arrangements with any local or foreign entity for carrying out the purpose of this Ordinance. Government rules on the subject will be observed;
- (g) plan, develop and execute new developments and projects through joint ventures with local and international agencies institutions and individuals;
- (h) plan, approve and execute mergers and amalgamations with other adjoining housing schemes or cooperative housing societies that may be considered expedient for the overall growth of the Authority but subject to the approval of the Governing Body and where it pertains to Islamabad Capital Territory, shall be done with the concurrence of CDA;
- (i) lease, purchase/procure, sell, exchange, mortgage, rent out or otherwise dispose of any land / property vested in the Authority;
- (j) cancel or re-plan any housing, commercial or amenity unit, its planned housing project or Scheme either in default of payment of installments called for, or in violation of any terms and conditions for such project or Scheme by all allottees, transferees or lessees;
- (k) do all such acts, deeds and things that may be necessary or expedient for the purpose of proper planning and development of the Specified Area; and
- (l) make with the prior approval of Governing Body, rules and regulations relating to the terms and conditions of service of employees, staff and consultants of the Authority.

9. **Powers of the Executive Board to raise funds.**—The Executive Board may raise funds, from local and foreign lending agencies, for the purpose of generating its working capital in such manner as it may think proper, through loans or levy of any charges as may be prescribed by rules.

10. **The Administrator, his powers, duties and functions.**—(1) The Administrator shall be the Chief Executive Officer of the Authority and shall exercise all executive powers of the Authority delegated or otherwise, in accordance with the policy laid down by the Governing Body and the directions or decisions of the Executive Board subject to the provisions of this Ordinance, the rules and regulations;

(2) The Administrator may, either by himself or through any officer appointed by the Executive Board in this behalf, carry on the correspondence and shall sign, verify, pursue and file all pleadings and such other documents on behalf of the Authority, in any suit, appeal, petition and proceedings which may be instituted, prepared and filed by or against the Authority in or before any court, tribunal or authority.

(3) The Administrator may with the approval of the Executive Board delegate its powers to any of its sub-ordinate staff specifying the power to be exercised including but not limited to sign contracts, pleadings, to issue NOC, NEC, Lien Marking:

Provided that the officer so authorized shall exercise the power of signing the contract after the approval of the Executive Board or the Administrator.

11. Appointment of officers and staff.—The Executive Board may appoint such officers, functionaries, employees, staff, experts, consultants and advisors as it may consider necessary for the performance of the functions of the Authority under this Ordinance and in such manner and on such terms and conditions as may be prescribed by rules.

12. Delegation of powers.—The Governing Body, the Executive Board and the Administrator may authorize any person, subject to such conditions as it may impose to perform such functions and duties as may be assigned to him in writing.

13. Committees.—The Authority, the Governing Body and the Executive Board may constitute such committees as may be necessary for the efficient performance of their respective functions and assign to such committees such functions, as may be deemed necessary.

14. Functions of the Authority.—Subject to the provisions of clause (a) of sub-section (2) of section 8, the Authority may do all such acts and things as may be necessary for the planning and development of and for providing and regulating housing facilities in the Specified Area.

15. Authority Fund.—(1) There shall be a fund to be known as the "Defence Housing Authority, Islamabad Fund" which shall vest in the Authority and to which shall be credited all moneys received by the Authority.

(2) The fund shall be kept in a scheduled bank or Financial Institution and shall be utilized and regulated in such manner, as may be prescribed.

(3) The funds may be invested in any banking financial or non banking financial institutions after the approval of Executive Board.

16. **Budget, audit and accounts.**—The budget of the Authority shall be approved by the Governing Body and its accounts shall be maintained and audited in such manner as may be prescribed.

17. **Municipal functions.**—During such period and for the Specified Area the Federal Government may, by Notification in the Official Gazette specify, notwithstanding anything contained in any other law for the time being in force, that the Authority may exercise and perform such powers and functions as a Municipal Administration may exercise and perform in relation to its municipal functions under the law for the time being in force, except in Islamabad Capital Territory where municipal functions shall remain with CDA as provided under section 11(5) of the "Islamabad Capital Territory Local Government Ordinance 2002."

18. **Taxes and duties etc.**—All taxes, fees, rates and cesses imposed or levied in the existing manners and procedures immediately before the promulgation of this Ordinance shall continue to be imposed or levied in the same manners and procedures until altered or abolished in accordance with the law.

19. **Power to cancel allotment.**—The Governing Body or the Executive Board may cancel, revoke or rescind any allotment, transfer, license, lease or agreement in respect of any plot or Scheme in the Specified Area if the allottee, transferee, licensee or Lessee fails to pay the dues or installments including development charges in respect of such plot, a piece of land or housing unit within three months from the date of receipt of the demand in writing or within such extended time as the Governing Body or the Executive Board may, in special cases, fix and thereupon the plot or the housing unit, with or without construction thereon, shall be resumed and vest in the Authority.

20. **Conversion of property to a different use.**—Any conversion of property to a different use or purpose other than the one provided under a Scheme prepared by the Authority by a person without the previous approval of the Authority in writing, shall be liable to the imposition of fine which may extend to two thousand rupees per day from the date of its conversion till the default continues.

21. **Removal of building erected or used in contravention of the Ordinance.**—(1) If any building, structure, work on land is erected, constructed or used in contravention of the provisions of this Ordinance or any rules, regulations or orders made thereunder, the Authority or any person authorized by it in this behalf, may by order in writing, require the owner, occupier, user or person in control of such building, structure, work on land to remove, demolish or alter the building,

structure or work or to use it in such manner as may bring such erection, construction or use in accordance with the provisions of this Ordinance.

(2) If an order under sub-section (1), in respect of any building, structure work or land is not complied with in such time, as may be specified therein, the Authority or any person authorized by it in this behalf, may, after giving the person concerned an opportunity of being heard, remove, demolish or alter the building, structure or work, or stop the use of the land, or seal the building, premises and in so doing, may use such force as may be necessary and may also recover the cost thereof from the person responsible for the erection, construction, or use of the building, structure, work or land.

22. Industrial Relations Ordinance 2002 etc not to apply.—Nothing contained in the Industrial Relations Ordinance, 2002 (XCI of 2002) shall apply in relation to the Authority.

23. Employees etc deemed to be public servants.—All employees, functionaries, officers, experts, consultants and advisors of the Authority shall when acting or purporting to act in pursuance of any provisions of this Ordinance shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

24. Indemnity.—No suit or legal proceedings shall lie against the Authority, the Governing Body, the Executive Board, the Administrator, or any of their members, or employees of the Authority for any thing done or purported to have been done by them in good faith under the Ordinance, the rules or the regulations made thereunder.

25. Power to make rules.—The Governing Body may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

26. Power to make regulations.—The Executive Board may, by notification in the official Gazette, make such regulations not inconsistent with the provisions of this Ordinance as it may consider necessary for the administration and management of the affairs of the Authority.

27. Ordinance not to override other laws.—Except otherwise provided in this Ordinance, the provisions of this Ordinance shall not override any other law for the time being in force.

28. **Dissolution and savings.**—(1) Upon the commencement of this Ordinance, the Army Welfare Housing Scheme (AWHS) as part of Army Welfare Trust shall stand dissolved and upon such dissolution,—

- (a) all assets, rights, powers, authorities and privileges and all property, movable and immovable, cash and bank balance, reserve funds, investments and all other interests and rights in or arising out of such property and all liabilities and obligations of whatever kind of the AWHS shall be transferred to and vest in the Authority;
- (b) all contracts and agreements entered into, all rights acquired and all matters and things agreed to be done by, with or for the AWHS before such dissolution shall be deemed to have been entered into, acquired or agreed to be done by, with or for the Authority;
- (c) all leases executed and all grants made and all lands vested in the name of AWHS before such dissolution shall be deemed to be leases executed and grants made and, all land vested in the name of the Authority;
- (d) all contracts, projects, schemes, work (whether in progress or not) and all guarantees, undertakings, obligations, liabilities and mortgages, executed or subsisting in the name of AWHS before such dissolution shall be deemed to be contracts, projects, schemes, works, guarantees, undertakings, obligations, liabilities and mortgages of the Authority;
- (e) all pending disputes in respect of AWHS, shall stand transferred to and be decided by the Administrator and any party aggrieved by his decision shall have the right of appeal to the Executive Board whose decision thereon shall be final;
- (f) all suits, petitions and other legal proceedings instituted by or against AWHS, before such dissolution shall be deemed to be suits, petitions, and proceedings by or against the Authority; and
- (g) all allotments and transfers of plots, whether residential, commercial or otherwise, made by AWHS in the Specified Area before such dissolution shall be deemed to be allotments and transfers made by the Authority”:

Provided that the Executive Board may.—

- (i) cancel such allotments which were made or issued in contravention of the bye-laws of AWHs or the resolution of the Executive working body of AWHs;
 - (ii) alter the area of any plot involving duplicate allotments and re-allot the same in such manner as it may consider appropriate; and
 - (iii) pass such orders in respect of transfer of plots involving duplicate allotments as it may deem fit; and
- (h) all bye-laws, rules or regulations in force immediately before the dissolution of AWHs shall continue in force until altered or rescinded by rules or regulations made by the Authority.

29. **Transfer of employees etc of AWHs.**—Notwithstanding anything to the contrary contained in any contract or agreement or in the conditions of service, every employee, functionary, officer, staff, expert, consultant and adviser of AWHs shall on the commencement of this Ordinance, stand transferred to the Authority on the same terms and conditions.

30. **Removal of difficulty.**—If any difficulty arises in giving effect to any provision of this Ordinance, the Federal Government may, within a period not exceeding two years from the commencement of this Ordinance, give such directions, not inconsistent with the provisions of this Ordinance, as it may consider necessary for the removal of such difficulty.

GENERAL
PERVEZ MUSHARRAF,
President.

JUSTICE (RETD)
MANSOOR AHMED,
Secretary.